Gmail P M [redacted]>

City LMAD Easement

P M [redacted] Wed, Nov 4, 2026 at 12:58 PM
To: "Litfin, Todd" <tlitfin@rutan.com>
Cc: Jamie Lai <jlai@yorbalindaca.gov>, Jesse Gutierrez <jgutierrez@yorbalindaca.gov>, Carolina Torres <ctorres@yorbalindaca.gov>, "mikemorganstern@ocfa.org" <mikemorganstern@ocfa.org>, sed@cpuc.ca.gov, crc.legal@crc.com, info@crc.com, Peter Grant <pgrant@yorbalindaca.gov>, city_council@yorbalindaca.gov, "lmad.compliance.review@gmail.com" <lmad.compliance.review@gmail.com>

To: Todd Litfin, City Attorney (tlitfin@rutan.com)

Subject: NOTICE OF REJECTION OF CLAIM & CONFIRMATION OF GOV. CODE § 835 LIABILITY: Chicago Ave LMAD

Mr. Litfin:

The underlying fee property owner is in receipt of your email dated November 4, 2026. Your correspondence attempting to classify the hazardous, unmitigated WUI vegetation on the Chicago Avenue slope as "City trees," while explicitly threatening retaliatory legal action to prevent their removal, has been logged into the public audit ledger.

Your email is not a valid legal defense; it is a documented confession of municipal recklessness. This formal dispatch serves to categorically reject your mischaracterization of property rights and to confirm that your threats of litigation do not void the fee property owner's statutory rights to protect human life and infrastructure.

1. Rejection of the "City Trees" Fiction (Easement vs. Fee Title)
The City of Yorba Linda does not own the Chicago Avenue slope. The City holds a non-possessory landscape maintenance easement. Under California real property law, the natural fixtures attached to the land belong to the fee owner, not the easement holder. The City's sole legal right is restricted to *maintaining* the landscape safely. By allowing an unbroken forested fuel load and invasive root systems to actively crush a high-pressure natural gas pipeline and violate OCFA Guideline B-09, the City has abandoned its maintenance obligations and cultivated a lethal public nuisance. It is an unconscionable abuse of municipal authority to claim ownership of an imminent hazard while simultaneously refusing the duty to abate it.

2. Irrelevance of Municipal "Authorization" (CA Civil Code §§ 3495 & 3502)
Your assertion that the City "does not authorize" the removal of this hazard is legally irrelevant. I do not require the City's permission to prevent a pipeline rupture or a catastrophic WUI fire. Private self-help abatement of a documented nuisance under California Civil Code §§ 3495 and 3502 does not require municipal consensus or authorization; it is triggered by formal notice and the responsible party's failure to act. The City was served a stamped P.E. technical hazard report on October 7, 2026, and administratively defaulted on October 14, 2026. Your email simply serves as written proof of the City's deliberate refusal to cure its default.

3. Perfection of California Government Code § 835 Liability
By transmitting this threat, you have provided the exact evidentiary link required to void the City's municipal immunity. California Government Code § 835 holds a municipality strictly liable for a dangerous condition when it has "actual knowledge" of the hazard and sufficient time to protect against it. Your correspondence irrefutably proves the City possesses actual knowledge of the imminent threat to the pre-1980 legacy homes and the CPUC GO 112-F pipeline infrastructure.

Instead of mitigating this severe public endangerment, the City has chosen to weaponize taxpayer-funded legal resources to intimidate the fee property owner into leaving the hazard intact. Prioritizing bureaucratic control over a landscape easement above the lives of Yorba Linda residents and the integrity of subterranean gas infrastructure constitutes gross negligence and deliberate indifference.

Your threat of "legal rights and remedies" is noted, but it is frivolous, retaliatory, and entirely subordinate to California nuisance law and federal infrastructure safety mandates. The property owner retains all statutory rights to abate this unmitigated threat to life and property caused by the City's hostility to public safety.

Respectfully,

Peter Meng, P.E.
Underlying Fee Property Owner

CC: LMAD Compliance Review Audit Ledger (lmad.compliance.review@gmail.com *)*

Audit Ledger URL: https://github.com/ca-lmad-auditors/yorba-linda-lmad-compliance-audit

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